NCAT
NSW Civil & Administrative Tribunal

Tenancy

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NCAT is the main forum for resolving tenancy disputes between landlords and tenants in New South Wales.

> Tenancy cases are managed through NCAT's **Consumer and Commercial Division**.

Tenancy disputes include payment of the rental bond, rent increases, unpaid rent, termination of the tenancy agreement, compensation, repairs and other breaches of the residential tenancy agreement.

How to apply

You can **apply online** for a tenancy application.

Apply online

Download and complete an application form. Lodge your application at any **NCAT Registry** or Service NSW service centre.

- **Tenancy application** (PDF , 241.6 KB)
- **Termination and possession for non-payment of rent** (PDF , 221.9 KB)
- **Rental bond application** (PDF , 189.3 KB)

Refer to the **Tenancy and social housing fact sheet** (PDF , 400.5 KB) for the types of orders that can be made.

Fees

Fees are payable for tenancy applications. View our **fees and charges**.

Time limits

Time limits apply for some types of tenancy orders. Check the **Tenancy and social housing fact sheet** (PDF, 291.0 KB) (PDF, 291.0 KB) for details.

If you apply outside of the time limit, you can request a time extension as part of your application. NCAT will not always agree to a request for a time extension.

Federal jurisdiction

Is the landlord or tenant a permanent resident in another State? Check if you matter is affected by **federal jurisdiction**.

What happens next

Tenancy cases are listed for **conciliation** and **hearing**. Check the notice of hearing from NCAT and follow the instructions provided.

> Read the **hearing preparation checklist** to prepare for your hearing.

Hearing notes form

Landlords and property managers should complete the **Hearing notes form** (PDF, 207.6 KB) before arriving at the NCAT hearing.

Orders NCAT can make

NCAT can make a wide range of orders in tenancy cases. These include:

- ending the tenancy agreement
- payment of the rental bond (up to $30,000)
- compensation be paid to the landlord or tenant (up to $15,000)
- that a rent increase is excessive
- a term of the agreement must be complied with.

Refer to the **Tenancy and social housing fact sheet** (PDF , 400.5 KB) for the full list of orders that can be made.

For orders about **abandoned or uncollected goods** you will need to lodge a separate application.

COVID-19 impacted residential tenancies

For information about the residential tenancy support package for COVID-19 impacted tenants and landlords visit the **NSW Fair Trading website** or call 13 32 20.

Legislation

The following legislation applies to tenancy disputes.

- **Residential Tenancies Act 2010**
- **Residential Tenancies Regulation 2019**
- **Civil and Administrative Tribunal Act 2013**

> ### Organisations that can help
>
> NCAT cannot provide legal advice. Find out **how we can and cannot assist**. Below are some organisations that can provide help or advice about your case.
>
> - **NSW Fair Trading**
> - **LawAccess NSW**
> - **Tenants' Union of NSW**

Last updated: 11 Aug 2023

We acknowledge the traditional owners and custodians of the land on which we work and we pay respect to the Elders, past, present and future.